

A

MEASURE

PASSED BY

The National Assembly of the Church of England

To confer upon Queen Anne's Bounty additional powers relating to the application of augmentation moneys and securities, the abatement and extinguishment of charges upon benefices, and other matters connected therewith.

[28th April 1939.]

1. Queen Anne's Bounty shall have power to apply from time to time moneys or securities in their hands appropriated for the augmentation of any benefice in or towards any one or more of the following purposes :—
- (i) division of the residence house of the benefice into two or more parts ;
- (ii) improvements to the residence house and any cottage and outbuildings belonging thereto, including drainage and the supply of water, gas and electricity ;
- (iii) building, rebuilding, constructing or improving any house, cottage or other buildings on land belonging to the benefice, including the drainage thereof and the supply of water, gas and electricity thereto ;
- (iv) making up roads and footpaths adjoining any property belonging to the benefice and improvements to the drive, paths and garden of the residence house of the benefice ;
- (v) redemption of fee farm rents, quit rents and other fixed annual payments charged in perpetuity upon property of a benefice and of annuities arising under the Tithe Act, 1936, charged upon such property ;

Additional powers for Queen Anne's Bounty relating to the application of augmentation moneys or securities.

26 Geo. 5. &
1 Edw. 8.
c. 43.

No. 1. *Queen Anne's Bounty (Powers) 2 & 3 GEO. 6.
Measure, 1939.*

- (vi) payment of compensation for and the costs of the extinguishment of any manorial incidents to which the glebe or other property of the benefice was formerly subject; and
- (vii) compounding of liability for the repair of a chancel for which Queen Anne's Bounty are liable by reason of tithe rent-charge having been vested in them for the benefice prior to the Tithe Act, 1936 :

Provided that—

(a) after the application of moneys or securities in or towards the purpose mentioned in paragraph (i) the bishop of the diocese in which the benefice is situate shall have power to declare that one of the said parts shall from the date of such declaration be the residence house of the benefice; and

(b) in cases of compounding by Queen Anne's Bounty under paragraph (vii), subsection (3) of section fifty-two of the Ecclesiastical Dilapidations Measure, 1923, shall not apply.

Extension
of section 8
of the Queen
Anne's
Bounty
(Powers)
Measure,
1937.

2. The right of Queen Anne's Bounty under section eight of the Queen Anne's Bounty (Powers) Measure, 1937, to deduct from the money or stock appropriated to a benefice or ecclesiastical corporation under the provisions of the Third Schedule to the Tithe Act, 1936, expenses and charges incurred by them in connection with the preparation and transmission of particulars required under section five of the Tithe Act, 1936, including surveyors' charges, shall extend to all undischarged liabilities and expenses for work done before the passing of the said Act in the verification and revision of the tithe collection list.

Extension
of powers of
abating
charges on
benefices in
favour of
other
benefices.

3. The powers of abating charges conferred upon Queen Anne's Bounty by paragraph 4 of Part II of the Third Schedule to the Tithe Act, 1936, are hereby extended so as to include any such charge coming into operation after, but created by an instrument dated on or before, the first day of October, one thousand nine hundred and thirty-six, and all such powers shall be

2 & 3 GEO. 6. *Queen Anne's Bounty (Powers) No. 1.*
Measure, 1939.

exercisable by Queen Anne's Bounty notwithstanding any provisions for the stabilisation of a charge contained in the instrument creating the same.

4. Queen Anne's Bounty shall have power, with the consent in the case of each benefice concerned, of the incumbent and of the bishop of the diocese in which the benefice is situate, to extinguish any permanent charge upon the whole or any part of the revenues of a benefice in favour of another benefice, by transferring from the benefice charged to the benefice entitled to the charge such part of the moneys or securities appropriated or held by them for the augmentation of the benefice charged as will produce an annual income equal at the date of transfer to the annual amount of the charge.

Power to extinguish charges on benefices in favour of other benefices.

5.—(1) Subject to the provisions of subsection (2) of this section, Queen Anne's Bounty, in estimating the net income of a benefice for the purposes of section two of the Queen Anne's Bounty (Powers) Measure, 1937, may include in Part I or Part II of the Schedule thereto (as the case may be) any moneys payable under a permanent charge upon the revenues or endowments of a benefice or any part thereof in favour of any other benefice, and may make all such adjustments as to times of payment and otherwise as may be necessary to bring the same within the operation of the said Measure.

Payment of charges on benefices.

(2) The powers conferred by this section shall only be exercisable—

- (i) at the request of the beneficiary under the said Measure and of the incumbent of the benefice so charged as aforesaid; or
- (ii) after three months' notice in writing shall have been given to such beneficiary and incumbent of the intention of Queen Anne's Bounty to exercise the said power.

6. Queen Anne's Bounty shall not be held liable in respect of any payments made by them between the years nineteen hundred and thirty-two and nineteen hundred and thirty-seven to their chairman of committees or their joint treasurers which may not have been authorised by their Charter or the rules and regulations made thereunder and they and the said chairman of committees and joint treasurers are hereby freed and

Indemnity in respect of certain payments.

No. 1. *Queen Anne's Bounty (Powers) 2 & 3 GEO. 6.
Measure, 1939.*

indemnified from and against all claims and demands to make good any such payments or otherwise in relation to the same.

**Interpre-
tation.**

7. In this Measure the expressions "beneficiary," "benefice" and "ecclesiastical corporation" have the same meaning as in the Queen Anne's Bounty (Powers) Measure, 1937.

Extent.

8. This Measure shall extend to the whole of the Provinces of Canterbury and York (except the Channel Islands and the Isle of Man).

Short title.

9. This Measure may be cited as the Queen Anne's Bounty (Powers) Measure, 1939.

Printed by PERCY LUND, HUMPHRIES & Co. LTD.

FOR
NORMAN GIBB SCORGIE, C.V.O., C.B.E., Controller of His Majesty's Stationery Office
and King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1d. net